



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing four judgments on Tuesday 19 September 2017 and 13 judgments and / or decisions on Thursday 21 September 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 19 September 2017

[Randelović and Others v. Montenegro \(no. 66641/10\)](#)

The applicants are 13 Serbian nationals, born between 1944 and 1982, twelve of whom live in Serbia and one in Montenegro. One of the applicants is also a national of 'the former Yugoslav Republic of Macedonia'. The case concerns their complaint that the Montenegrin authorities failed to conduct a prompt and effective investigation into the deaths or disappearance of the applicants' family members.

The applicants' relatives were among a group of around 70 Roma who boarded a boat on the Montenegrin coast on the night of 15 August 1999 with the intention of reaching Italy. A few hours later, the boat sank, owing to the large number of passengers. One passenger survived the accident. Subsequently, 35 bodies were found in the sea, on which autopsies were performed. The forensic specialists considered that, while the cause of death could not be established with certainty, the passengers were likely to have died from drowning.

In September 1999 a judicial investigation was opened against seven individuals on suspicion of illegally crossing the State border in connection with reckless endangerment. In October 1999 the State prosecutor in Bar issued an indictment with the Court of First Instance in Bar against the seven suspects. After a number of hearings had been held, the case was eventually transferred to the High Court in Podgorica in April 2004. A new formal investigation was opened in November 2004 and a new indictment was issued in October 2006, against eight defendants, who were charged with reckless endangerment. In 2008 the court rejected the indictment in respect of one of the defendants. It subsequently decided that two defendants who lived outside of Montenegro would be tried in absence. After further delays, notably caused by a number of hearings being adjourned, the High Court acquitted all defendants in July 2014 for lack of evidence.

Relying in particular on Article 2 (right to life) of the European Convention on Human Rights the applicants complain that the Montenegrin authorities failed to conduct a prompt and effective investigation into the deaths or disappearance of their family members and to prosecute those responsible.

[Zolotorev v. Russia \(no. 13408/07\)](#)

The applicant, Leonid Leonidovich Zolotorev, is a Russian national who was born in 1965 and is imprisoned in Kharp (Russia). The case concerns allegations of ill-treatment.

On 4 July 2003, on suspicion of having committed a number of offences, Mr Zolotorev was arrested by the police and taken to the temporary detention centre of the police station of the city of Saint-Petersburg (IVS). On his arrival he was examined by an assistant doctor.

In the evening of 7 July 2003, according to Mr Zolotorev, two men in uniform took him to an interrogation room where they struck him twice with a truncheon in the stomach to make him confess. On 9 July 2003 Mr Zolotorev was transferred to prison no. IZ-47/1 of Saint Petersburg, where, in the evening of 20 September 2003, a police officer struck him in the stomach while he was in his cell. On the orders of that officer, he received blows to the body and head from two of the other inmates. He was admitted to the prison hospital on 26 September 2003.

On 23 June 2005 Mr Zolotorev was taken to the court of Saint Petersburg to attend a hearing, but he refused as the lawyer of his choosing was not present. The escorting police officers allegedly pressed him against a wall and punched him in the back, also banging his head against the wall.

The investigating authorities refused several times to open criminal investigations or order a forensic medical examination in respect of Mr Zolotorev's allegations. Various documents were also lost.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment) of the European Convention, Mr Zolotorev complains that he sustained ill-treatment and that there has been no effective investigation into these allegations.

[Binnur Uzun and Others v. Turkey \(no. 28678/10\)](#)

The four applicants are Turkish nationals, respectively the wife and daughters of Mr Ufuk Uzun. The case concerns the death of Mr Uzun in an accident on an abandoned building site.

On 30 March 2002 Mr Uzun fell down the shaft of a lift in a building whose construction had been abandoned. He was taken to hospital but died on arrival.

On 8 April 2002 the public prosecutor decided to discontinue the criminal investigation which had been opened automatically. He took the view that no offence had been committed and that no third party was liable.

On 31 January 2003 the applicants brought civil proceedings before Sarıyer District Court to obtain legal aid in order subsequently to bring a compensation claim against the municipal authority of Sarıyer, which they regarded as liable for the death. The court decided to grant them legal aid. On 10 June 2003 the applicants sued the Sarıyer municipal authority for damages. On 10 April 2006 the District Court upheld their claim and decided to award them sums for loss of the family breadwinner and non-pecuniary damage. The court found that Mr Uzun bore principal liability for the fall, as he had acted imprudently by entering a building site in the dark and in an inebriated state. It further took the view that the failure by the municipal authority to adopt safety measures on the building site had contributed to the death. The authority appealed on points of law. The Court of Cassation quashed the judgment on the ground that the administrative court alone was competent to rule on the merits of the case. The applicants applied for damages before the Istanbul Administrative Court, which dismissed the appeal as out of time. The Administrative Court did not examine whether the request for legal aid had interrupted the running of the limitation period. It took the view that the one-year period had begun on the death of Mr Uzun, 30 March 2002, and observed that the period had already expired when the case was brought before the District Court on 10 June 2003. The Supreme Administrative Court upheld that judgment.

Relying on Article 2 (right to life), the applicants allege that the lack of safety measures on the building site led to the death of their husband/father. They also argue that the dismissal of their claim as being out of time constituted a breach of their right to a fair hearing.

[Revision](#)

[Cangöz and Others v. Turkey \(no. 7469/06\)](#)

This request for revision of a judgment concerns a case brought by 17 Turkish nationals following the killing on 17 and 18 June 2005 of 17 of their relatives, members of an outlawed organisation in Turkey (the Maoist Communist Party, "the MKP"), during armed clashes with the security forces.

Relying in particular on Article 2 (right to life), the applicants alleged that their relatives had been deliberately killed by the security forces and that the authorities had failed to carry out an effective investigation into the circumstances of their deaths. Also relying on Article 3 (prohibition of inhuman or degrading treatment), they alleged that their relatives' naked bodies had been displayed in a carpark at a military base without any thought to the dignity of the deceased or their own feelings.

In a [judgment of 26 April 2016](#) the Court held that there had been a violation of Article 2 on account of the killing of the applicants' 17 relatives and the failure to carry out an effective investigation. It awarded each applicant 65,000 euros for non-pecuniary damage.

On 26 October 2016 the applicants' lawyers informed the Court that five of the applicants had died. They consequently requested the revision of the judgment of 26 April 2016 under Rule 80 of the Rules of Court and the designation of a number of the applicants' heirs as beneficiaries of the award made for non-pecuniary damage. The Court will rule on this request for revision in its judgment of 19 September 2017.

Thursday 21 September 2017

[Sévère v. Austria \(application no. 53661/15\)](#)

The applicant, Michel Sévère, is a French national who was born in 1967 and lives in Rochefort (France). The case concerns the abduction of his sons by their mother from France to Austria.

Mr Sévère had twin sons with C.B., a French and Austrian national, in 2006. They lived together in Rochefort, France. Following a dispute in December 2008, C.B. left France for Vienna, taking their sons with her.

A number of proceedings ensued in both France and Austria. In France there were custody proceedings (in which it was decided that the parents were to have joint custody, with the children's main residence being with their father); and criminal proceedings against C.B. for child abduction (in which she was convicted and sentenced to one year's imprisonment). In Austria two criminal investigations were discontinued in 2009 and 2011: the first against Mr Sévère for sexual abuse of minors; and the second against C.B. for child abduction. Mr Sévère also brought proceedings in Austria for the return of his sons under the Hague Convention (on the Civil Aspects of International child Abduction). In those proceedings the Austrian courts carefully examined C.B.'s allegations of sexual abuse, but dismissed them as implausible and issued an order for the return of the children, which became final in October 2009. A few months later, in December, the authorities attempted to enforce this order, without success as neither C.B. nor the children were at their known addresses. Over the following five and a half years involving numerous actions lodged by both parties, intensive exchange with the French authorities, oral hearings and many decisions, the Austrian authorities tended more and more towards a reassessment of the children's return. They eventually decided in April 2015 against enforcement of the return order. They considered that, if returned to France, the children would very likely be further traumatised due to the separation from their mother (who was facing a prison sentence in the country), and that they had meanwhile adapted well to living in Austria.

Relying on Article 8 (right to respect for private and family life), Mr Sévère complains that the Austrian authorities had not taken all the necessary measures to ensure his sons' swift return to France. In particular, he argues that they had not made sufficient attempts to locate the children and their mother and had not tried any other coercive measures.

Just Satisfaction

Vijatović v. Croatia (no. 50200/13)

The applicant, Vera Vijatović, is a Croatian national who was born in 1927 and lives in Zagreb. The case concerns the question of just satisfaction in a judgment relating to the Croatian authorities' refusal to grant her request to purchase a State-owned flat in Zagreb. Her request to purchase the flat she had been living in under a specially protected tenancy was denied on the ground that it had been lodged outside the time-limit under the relevant domestic law.

Relying in particular on Article 1 of Protocol No. 1 (protection of property), Ms Vijatović complained of a breach of her property rights, arguing in particular that in other similar cases the Constitutional Court had found a violation of the Constitution on the ground that there had been no time-limit for lodging such a request; the only departure from such a view had been in her case.

In its [principal judgment](#) of 16 February 2016 the Court held that there had been a violation of Article 1 of Protocol No. 1, but held that the question of the application of Article 41 (just satisfaction) was not ready for decision and reserved it for examination at a later date. The Court will rule on this matter in its judgment of 21 September 2017.

Kuparadze v. Georgia (no. 30743/09)

The applicant, Gvantsa Kuparadze, is a Georgian national who was born in 1992 and lives in Tbilisi. The case concerns her complaint about the fairness of proceedings in which she was convicted of stabbing a classmate in the school playground. She was 14 years old at the time. She also complains about the conditions of her related detention.

In November 2006 Ms Kuparadze was remanded in custody on charges of attempted aggravated murder of one of her classmates. In the ensuing proceedings she alleged that the victim had been stabbed by two young men who had climbed into the school playground and attacked her classmate with two knives. According to the victim, however, it was Ms Kuparadze who had hit him on the head, then – holding him down – stabbed him. He managed to escape to the school's basketball court where he was found, taken to hospital and given life-saving surgery. In June 2007 the first instance court convicted Ms Kuparadze as charged, basing its findings on the victim's version of events and several forensic reports (including one report which found fibres from the victim's jacket on Ms Kuparadze's jacket). She was sentenced to ten years' imprisonment, half of which was suspended on probation. On appeal she presented two alternative forensic reports concluding that two knives had been used instead of one, as alleged by the victim. In December 2007 the Court of Appeal dismissed the alternative forensic reports, finding that they were based on speculation, and upheld Ms Kuparadze's conviction. In September 2008 the Supreme Court of Georgia dismissed her appeal on points of law without making an assessment on the merits.

Ms Kuparadze spent the first few months of her detention in a cell together with adult female inmates, before being moved to the newly created juvenile section of the prison. Her request that her sentence be deferred pending the construction of a separate detention facility for juvenile female offenders was rejected in September 2009, as was her complaint about the conditions in which she was serving her sentence. She was released on probation in November 2011.

Relying on Article 3 (prohibition of inhuman or degrading treatment), she complains that she was placed in an adult prison rather than in a juvenile detention facility; nor was her sentence deferred pending the construction of such a facility. She further complains about the conditions of her detention when she was subsequently placed in the prison's section for juvenile offenders, alleging overcrowding, humidity and a dysfunctional ventilation system. Also relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), she complains that the criminal proceedings against her were unfair because the Court of Appeal had failed to consider alternative forensic reports supporting her version of the events. She further complains

under Article 6 § 1 (right of access to court) that the Supreme Court refused to consider her case on the merits.

[Axel Springer SE and RTL Television GmbH v. Germany \(no. 51405/12\)](#)

The applicants are two German media companies: the publishing house Axel Springer SE, registered in Berlin, and the broadcasting company RTL Television GmbH ("RTL"), registered in Cologne. The case concerns their complaint about a judicial order banning the publication of images in which the defendant in a criminal trial for murder could be identified.

Both media companies were covering the criminal proceedings against S., a young man who had confessed to the police to having killed his parents and was charged with murder in June 2010. A psychiatric expert opinion obtained by the public prosecutor found that he had been suffering from a schizoid personality disorder at the time of committing the offence. Photojournalists working for the two companies attended the hearings at the Potsdam Regional Court. Prior to the beginning of the first hearing on 11 January 2011 the presiding judge informed journalists that the defendant's face would have to be made unidentifiable before any images of him were to be published. The presiding judge subsequently sent a reasoned order to the journalists, stating that only those who had registered with the court and given assurances that prior to publication of their material S.'s face would be made unidentifiable, for example by blurring it, were permitted to film or take photos. He noted in particular that the personality rights of S., who had never been the subject of public attention and who had expressly requested that his identity be concealed, outweighed the public interest in being informed.

The applicant companies subsequently filed an objection requesting the suspension of the judicial order, pointing out that S. had confessed to the crime on the first day of the proceedings. The presiding judge upheld the order. In February 2012 the Federal Constitutional Court declined to consider a constitutional complaint by the companies.

The applicant companies complain that the judicial order violated their rights under Article 10 (freedom of expression).

[Falkauskienė v. Lithuania \(no. 42307/09\)](#)

The applicant, Aldona Falkauskienė, is a Lithuanian national who was born in 1929 and lives in Girkalniai, Klaipėda Region (Lithuania). The case concerns Ms Falkauskienė's complaint that it was impossible for her to recover an inheritance of 15,800 US dollars (USD) which she had deposited with a bank operating in Lithuania following the country's independence in 1990.

In September 1991 Ms Falkauskienė requested to open a bank account in US dollars at the Lithuanian Bank of Foreign Economic Affairs. This name was used to refer both to the Lithuanian branch of the Bank of Foreign Economic Affairs of the USSR and to an independent Lithuanian bank which was to be established under new regulations adopted following Lithuania's independence. The new regulations provided that Soviet banks operating in Lithuania were to be restructured and transferred to Lithuania's jurisdiction. Following Ms Falkauskienė's request, an account was opened and a record made of her inheritance. However, when asking to withdraw the entire amount in 1992, she was informed that the bank did not have sufficient funds and was only given USD 2,000. She was subsequently provided with USD 1,400 compensation in line with Government regulations on lost deposits.

Ms Falkauskienė wrote to various State institutions and officials and also brought civil proceedings to try to recover the remainder of her deposit, without success. The domestic courts – at three levels – concluded that the regulations for restructuring banks had not in fact been implemented and the bank where she had deposited her inheritance had not been restructured into an independent Lithuanian bank. In their view therefore the Lithuanian State had never assumed any obligation to return Ms Falkauskienė's deposit. The institutions and the courts also found that the Lithuanian and

Russian authorities had agreed on a procedure for returning foreign currency deposits, but that negotiations were still pending.

Relying on Article 1 of Protocol No. 1 (protection of property), Ms Falkauskienė complains that she has been unable to recover her foreign currency deposit, alleging in particular that the new regulations adopted to restructure banks clearly stated that Soviet banks operating in Lithuania would come under Lithuanian jurisdiction and that Lithuania had therefore assumed an obligation to guarantee deposits. She also complains under Article 6 § 1 (right of access to court) that, in the civil proceedings concerning the recovery of her deposit, she had been obliged to pay excessive court fees.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Hadzhinedelchev v. Bulgaria (no. 41334/09)

Nedelchev v. Bulgaria (no. 69361/12)

Gogichaishvili v. Georgia (no. 2291/10)

Sioutis v. Greece (no. 16393/14)

Gisayev and Others v. Russia (no. 27240/09)

Khramkov and Others v. Ukraine (nos. 32604/12, 32621/12, 33164/12, 33198/12 and 33222/12)

Makarova and Others v. Ukraine (nos. 32545/12, 32586/12, 32588/12, 32597/12, 32628/12, 32894/12, 32969/12, 32995/12, 32998/12, 33047/12, 33140/12, 33150/12, 33168/12, 33176/12, 33183/12, 33194/12 and 33208/12)

Regina Ltd v. Ukraine (no. 55103/09)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.